

		The motion to compel is GRANTED. Counsel shall promptly meet and confer to schedule Respondent's deposition. Said deposition shall take place within 30 days of notice of this ruling, extended for method of service, or by any later date as agreed upon by the parties in writing. The court finds no substantial justification for the opposition to this motion. Pursuant to Code of Civil Procedure section 2025.450(g), the court imposes reasonable fees and costs in the amount of \$4,620.00 jointly and severally against Respondent and her counsel, Mr. Shaver, payable within 30 days of notice of this ruling, extended for method of service, or by any later date as agreed upon by the parties in writing. Counsel for Petitioner is ordered to give notice of this ruling.
01341801	Friedman - Probate	TENTATIVE RULING Case: Friedman - Probate 01341801 Calendar No: 5 Date: 09/16/26 MOTION TO BE RELIEVED AS COUNSEL (ROA 58) Attorney Charles K. Mills seeks to be relieved as counsel for Executor Barry Friedman. An attorney's right to withdraw as counsel is conditioned upon compliance with California Rules of Court, Rule 3.1362 and, where applicable, Orange County Local Rule 601.21. Counsel has not filed and served all three forms (i.e., MC-051, MC-052, and MC-053) required by California Rules of Court, Rule 3.1362. Specifically, Counsel has not filed the Order Granting Attorney's Motion to Be Relieved (MC-053), though the form has been served. (ROA 66.) All three mandatory forms must be filed <u>and</u> served on the client <u>and</u> on all persons who have appeared in this action. (Cal. Rules of Court, rule 3.1362(d).) Counsel has also not complied with Orange County Local Rule 601.21, which provides as follows: "If an attorney wishes to withdraw from a probate proceeding as attorney of record for the estate representative or any other fiduciary, in addition to the requirements under CCP 284 and CRC 3.1362, the attorney must have a citation issued and served

		on such motion or petition directing the representative to appear before the court to show cause why the motion or petition should not be granted or why the representative has not taken the steps to complete his or her duties.” The client is the Executor of the Estate of Joan C. Friedman, and the court’s records do not reflect that a citation was issued to the client. Counsel must file a Citation – Probate (DE-122/GC-322). Once the citation is signed by the court, counsel must have it served on the client in the same manner as a summons. (See Code Civ. Proc. § 415.10.) Further, pursuant to Probate code section 10953(c), the court might order Mr. Mills to prepare an accounting. If the client appears at the hearing, the motion <u>may</u> be granted. Otherwise, the motion will be continued once for compliance with the foregoing.
		TENTATIVE RULING Case: Calendar No.: Date: